



CHAPTER cxvi.

An Act to confer powers upon the lord mayor
aldermen and citizens of the city of Bradford
with reference to tramways and the running of
omnibuses and to certain of their undertakings
to authorise them to construct waterworks and
acquire lands to make further provisions for the
health and good government of the city and for
other purposes. [3rd August 1928.]

A.D. 1928.

WHEREAS the city of Bradford (hereinafter referred to as "the city") is a municipal borough under and subject to the Municipal Corporations Act 1882 and is also a county borough under the Local Government Act 1888 and the lord mayor aldermen and citizens of the city acting by the council (hereinafter referred to as "the Corporation") are the sanitary authority under the Public Health Act 1875 for a district consisting of the city and are also the local authority for the same district within the meaning of the Tramways Act 1870 :

And whereas the Corporation own and work a system of tramways in and adjacent to the city and it is expedient that the powers with reference to their tramway undertaking which are contained in this Act should be conferred upon them :

And whereas by the Bradford Corporation Act 1925 the Corporation were empowered to run omnibuses within the city and it is expedient that they should be empowered

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A.D. 1928. to run omnibuses upon such routes outside the city as
— are referred to in this Act :

And whereas the Corporation are the owners of the water undertaking of the city and under powers conferred upon them by various special Acts and Orders supply water within the city and elsewhere :

And whereas it is expedient that the Corporation should be empowered to construct a new aqueduct and to acquire lands for the purposes of their said water undertaking and that such further powers with reference to that undertaking as are contained in this Act should be conferred upon the Corporation :

And whereas the Corporation own and carry on an electricity undertaking and supply electricity in the city and it is expedient that such further powers with reference to the said undertaking as are contained in this Act should be conferred upon the Corporation :

And whereas it is expedient that further powers should be granted to the Corporation for the better government and for the protection of the health of the city as in this Act provided :

And whereas it is expedient that borrowing powers for the purposes of this Act should be conferred upon the Corporation and that the other financial provisions contained in this Act should be enacted :

And whereas it is expedient that the other powers and provisions contained in this Act should be conferred and enacted :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

And whereas plans and sections showing the line situation and levels of the works authorised by this Act and plans showing the lands which the Corporation may acquire compulsorily under the powers of this Act and a book of reference to those plans containing the names of the owners or reputed owners the lessees or reputed lessees and the occupiers of and describing such lands have been deposited with the clerk of the peace for the west riding of the county of York and are in this Act

respectively referred to as the deposited plans sections and book of reference : A.D. 1928.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Bradford Corporation Act 1928. Short title.

2. This Act is divided into Parts as follows :—

Division of
Act into
Parts.

- Part I.—Preliminary.
- Part II.—Tramways.
- Part III.—Omnibuses.
- Part IV.—Water.
- Part V.—Lands.
- Part VI.—Electricity.
- Part VII.—Sanitary provisions.
- Part VIII.—Finance.
- Part IX.—Miscellaneous.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely) :— Incorporation of Acts.

(1) The Lands Clauses Acts with the following exception and modification—

(a) Section 127 (relating to the sale of superfluous lands) of the Lands Clauses Consolidation Act 1845 is not incorporated with this Act ;

(b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section :

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(2) The Waterworks Clauses Act 1847 except—

(a) the words “with the consent in writing
“of the owner or reputed owner of any such
“house or of the agent of such owner” in
section 44;

(b) sections 75 to 82 (with respect to the
amount of profit to be received by the under-
takers when the waterworks are carried on for
their benefit); and

(c) section 83 (with respect to the yearly
receipt and expenditure of the undertakers):

(3) The Waterworks Clauses Act 1863 :

(4) The provisions of the Railways Clauses Con-
solidation Act 1845 with respect to the temporary
occupation of lands near the railway during the
construction thereof and also section 16 (Works
to be executed) of that Act :

Provided that in the said provisions of the Railways
Clauses Consolidation Act 1845 “the company” shall
mean the Corporation “the railway” shall mean the
waterwork authorised by this Act and “the centre of the
railway” shall mean the centre line as shown on the
deposited plans of the said waterwork.

Interpreta-
tion.

4. In this Act the several words and expressions to
which meanings are assigned by the Acts wholly or
partially incorporated herewith or by the Public Health
Acts have the same respective meanings unless there be
something in the subject or context repugnant to such
construction And—

“The city” means the city of Bradford;

“The council” means the council of the city;

“The Corporation” means the lord mayor aldermen
and citizens of the city acting by the council;

“The town clerk” and “the medical officer” mean
respectively the town clerk and the medical
officer of health of the city and respectively
include any person duly appointed by the
Corporation to discharge temporarily the duties
of either of the said officers;

“The county” means the west riding of the county
of York;

“ The county council ” means the county council of the county; A.D. 1928.

“ The Halifax Corporation ” means the mayor aldermen and burgesses of the county borough of Halifax;

“ The tramway undertaking ” means the tramway undertaking of the Corporation as authorised for the time being;

“ The Corporation tramways ” means and includes all tramways for the time being belonging or leased to or worked by the Corporation;

“ The omnibus undertaking ” means the omnibus undertaking of the Corporation as authorised for the time being;

“ The water undertaking ” means the water undertaking of the Corporation as authorised for the time being;

“ The new waterwork ” means the aqueduct conduit or line or lines of pipes by this Act authorised;

“ The electricity undertaking ” means the electricity undertaking of the Corporation as authorised for the time being;

“ The Order of 1883 ” means the Bradford Electric Lighting Order 1883;

“ The electricity limits ” means the area within which the Corporation are for the time being authorised to supply electricity;

“ Tramway revenue ” “ omnibus revenue ” “ water revenue ” and “ electricity revenue ” mean all moneys received by the Corporation in respect of the tramway undertaking the omnibus undertaking the water undertaking and the electricity undertaking respectively (other than borrowed moneys and other moneys which ought to be carried to the account of capital);

“ The city fund ” and “ the district fund ” mean respectively the city fund and the district fund of the city until the date of the first new valuation as defined in the Rating and Valuation Act 1925 and thereafter both the said expressions mean the general rate fund of the city;

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“The city rate” and “the general district rate” mean respectively the city rate and the general district rate of the city until the date lastly hereinbefore mentioned and thereafter both the said expressions mean the general rate of the city;

“Daily penalty” means a penalty for each day on which an offence is continued after conviction thereof;

“The Lands Clauses Acts” means those Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919;

“The Public Health Acts” means the Public Health Act 1875 and the Acts amending or extending the same;

“The arbitrator” means the arbitrator to whom any question of disputed purchase money or compensation under this Act is referred.

PART II.

TRAMWAYS.

Alteration
of gauge of
tramways of
the Corpo-
ration.

5.—(1) The Corporation may from time to time alter the gauge of any tramway for the time being belonging or leased to them to such other gauge as the Minister of Transport may approve (but so that in no case shall the gauge exceed four feet eight and a half inches) and for that purpose may lay a third rail or may take up and remove all or some of the existing rails plates and apparatus and other works of or connected with any such tramway and may relay the same or others in lieu thereof and may execute all such works and exercise all such powers as may be necessary or expedient for carrying out such alteration.

(2) In any case in which any proposed alteration under the provisions of this section of the gauge of any tramway laid in a main road in the county will involve the laying of a rail—

(a) so that for a distance of thirty feet or upwards a less space than nine feet six inches will intervene between such rail and the outside of the footpath on either side of the road at any place at which for the like distance a space of at least

- nine feet six inches intervenes between the nearest rail of the existing tramway and the outside of the footpath on either side of the road; or
- (b) in a position nearer to the outside of the footpath on either side of the road than any rail of the existing tramway between which and the outside of such footpath a less space than nine feet six inches intervenes for a distance of thirty feet or upwards
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the Corporation shall not less than one month before applying to the Minister of Transport for his approval under this section of the proposed altered gauge give to the county council notice in writing of their intention to make such application.

6. If any obstruction to the traffic on any of the Corporation tramways is caused by any vehicle breaking down or any load falling from a vehicle the person in charge of the vehicle shall forthwith remove the vehicle or load so as to prevent the continuance of the obstruction and if he fails to do so the Corporation may so remove the vehicle or load and may remove any other obstruction of the like character to such traffic and may provide and use all necessary plant and apparatus and take all necessary steps for the purpose of such removal as aforesaid.

Removal of obstructions.

PART III.

OMNIBUSES.

7.—(1) In addition to the powers exerciseable by the Corporation under section 41 (Power to run omnibuses) of the Bradford Corporation Act 1925 the Corporation may provide and maintain (but shall not manufacture) and may subject as hereinafter provided run omnibuses outside the city along the whole or any part or parts of the route of any of the Corporation tramways or of any route along which the Corporation are running or are or may hereafter be authorised to run trolley vehicles.

Power to run omnibuses outside the city.

(2) The Corporation may at their discretion either exercise the powers of running omnibuses conferred by this section in conjunction with the running of tramcars or trolley vehicles on the tramway or trolley vehicle route along which they so run omnibuses or discontinue

A.D. 1928. the running of such tramcars or trolley vehicles and take up and remove and dispose of all or any works apparatus and equipment constructed or provided by them for or in connection with any such tramway or the running of any such trolley vehicles.

(3) If and so long as the Corporation under the powers of this section discontinue the running of tramcars on any tramway or of trolley vehicles on any trolley vehicle route and provide in lieu thereof a service of omnibuses along the route of such tramway or along such trolley vehicle route the provisions of section 12 (Cheap fares for labouring classes) of the Bradford Corporation (Tramways Gas and Various Powers) Act 1900 shall apply to such service of omnibuses to the same extent as the said provisions applied to such tramway or trolley vehicle route.

(4) The Corporation shall not without the consent of the county council run omnibuses under the provisions of this section on any main road in the county Provided that—

- (a) such consent shall not be unreasonably withheld and any question whether or not such consent has been unreasonably withheld shall be determined by the Minister of Transport; and
- (b) such consent shall not be required for the running of a service of omnibuses on any such main road on any special occasion or in any case of emergency for a period not on any such occasion or in any such case exceeding one day.

(5) Nothing in this section shall enable or be deemed to enable the Corporation without the consent of the Halifax Corporation to run omnibuses along any route outside the city where the Halifax Corporation have or are authorised to have tramways or trolley vehicles.

As to restoration of main roads in certain cases.

8. The following provisions shall have effect with respect to the restoration of any main road in the county vested in and repairable by the county council which may be disturbed by the taking up and removal therefrom under the powers of the section of this Act of which the marginal note is "Power to run omnibuses outside the city" of any works apparatus or equipment constructed or provided in connection with any tramway or portion

of a tramway on which the running of tramcars is discontinued under the powers of that section :— A.D. 1928.

- (1) In this section the expression “the tramway” means any tramway or portion of a tramway on which the running of tramcars has been discontinued as aforesaid :
- (2) (a) Forthwith after the taking up and removal of any such works apparatus and equipment as aforesaid the Corporation shall pay to the county council and the county council shall accept a sum (to be ascertained by agreement between the Corporation and the county council or failing such agreement to be determined by arbitration as hereinafter provided) representing the estimated cost which would be incurred by the Corporation in the restoration to a condition equal to that of the remainder of the road or roads in which the tramway was laid of the portions of such road or roads for the maintenance and repair of which the Corporation were liable as tramway undertakers and on payment of the said sum all liability of the Corporation with respect to the restoration of such road or roads shall cease and determine ;
(b) After the payment of the said sum the county council shall be responsible for and assume full liability for the maintenance and repair of the portions of such road or roads for the maintenance and repair of which the Corporation were liable before the discontinuance of the tramway :
- (3) Any difference between the Corporation and the county council as to the sum to be paid by the Corporation under the provisions of this section shall be referred to and determined by an arbitrator to be agreed upon between them or failing such agreement to be appointed on the application of either party (after notice in writing to the other of them) by the President of the Institution of Municipal and County Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

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For protec-
tion of rail-
way com-
panies.

9.—(1) All works authorised by the section of this Act of which the marginal note is “Alteration of gauge of tramways of the Corporation” so far as they affect the lands railways and works belonging to or maintainable by a railway company shall be constructed under the supervision if given and to the reasonable satisfaction of such railway company and in exercising the powers of the said section the Corporation shall not obstruct the access to or egress from any station or depôt of a railway company.

(2) If any road or part of a road from which the Corporation take up and remove any works apparatus or equipment under the powers of the section of this Act of which the marginal note is “Power to run omnibuses outside the city” is repairable by a railway company the Corporation shall upon such taking up and removal reinstate and make good the surface of such road or part of a road (so far as the same is disturbed by such taking up and removal) to the reasonable satisfaction of such railway company.

(3) If any difference shall arise between the Corporation and any railway company under the provisions of this section such difference shall be referred to and determined by an arbitrator to be agreed upon between the parties in difference or failing such agreement to be appointed on the application of either party (after notice in writing to the other of them) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

Application
of existing
provisions
relating to
omnibuses.

10.—(1) The following provisions of the Bradford Corporation Act 1925 shall extend and apply to and with respect to the exercise of the powers of this Part of this Act (that is to say):—

Subsections (2) (3) (4) (5) and (6) of section 41
(Power to run omnibuses);

Section 42 (As to bridges and roads of railway
companies);

Section 44 (Fares &c. on omnibuses);

Section 47 (As to byelaws &c. under this Part of
Act).

(2) Section 10 (Periodical revision of rates and charges) of the Bradford Corporation Act 1910 shall

extend and apply in respect of the omnibuses of the Corporation as if the same were re-enacted in this Act with the substitution therein of references to the routes upon which the Corporation are for the time being running a service of omnibuses for references to tramways of the Corporation.

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11. Any services of omnibuses run by the Corporation under the powers of this Part of this Act and the omnibuses so run shall be deemed to form part of the omnibus undertaking and of the tramway undertaking.

Omnibus services to form part of omnibus undertaking and tramway undertaking.

12. The Corporation may appoint the stations and places from which the omnibuses of the Corporation shall start or at which they may stop for the purposes of taking up or setting down passengers and may fix the time during which such omnibuses shall be allowed to remain at any such place but any such appointment and fixing of time shall (as respects any station or place in the urban district of Shipley) be subject to the consent of the urban district council of Shipley :

Stopping and starting places.

Provided that no such starting or stopping place shall be appointed in such a position as to interfere with or render less convenient the access to or exit from any station or depôt of a railway company.

13.—(1) The Corporation may attach to any lamp-post pole standard or other similar erection erected on or in the highway on or near to any of their omnibus routes signs or directions indicating the position of stopping places for omnibuses. Provided that in cases where the Corporation are not the owners of such lamp-post pole standard or similar erection they shall give notice in writing of their intention to attach thereto any such sign or direction and shall make compensation to the owner for any damage or injury occasioned to such lamp-post pole standard or similar erection by such attachment and the Corporation shall indemnify the owner against any claim for damage occasioned to any person or property by or by reason of such attachment.

Attachment of signs indicating stopping places to lamp-posts &c.

(2) Nothing in this section shall be deemed to require the owner to retain any such lamp-post pole standard or similar erection when no longer required for his purposes.

(3) The Corporation shall not attach any such sign or direction to any pole post or standard belonging to the

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(4) The Corporation shall not attach any such sign or direction to any lamp-post pole standard or other similar erection belonging to a railway company except with the consent of such company in writing.

(5) The Corporation shall not attach any such sign or direction to any lamp-post pole standard or similar erection belonging to the Yorkshire Electric Power Company except with the consent of that company in writing or belonging to Electrical Distribution of Yorkshire Limited except with the consent of that company in writing.

(6) The Corporation shall not attach any such sign or direction to any pole post or standard in the borough of Halifax belonging to the Halifax Corporation except with the consent of that corporation. Provided that on complaint being made to the Minister of Transport that such consent is unreasonably withheld the said Minister may if he thinks fit by order dispense with such consent.

Working
and other
agreements.

14.—(1) The Corporation and any local authority empowered to run omnibuses in any borough or urban or rural district adjacent to the city or adjacent to any borough or urban or rural district in which any route over which the Corporation are for the time being empowered to run omnibuses is situate may enter into and carry into effect agreements for the working user management and maintenance of all or any of the omnibus services which the contracting parties are empowered to provide subject to the provisions of the respective Acts under which such omnibus services are authorised.

(2) The Corporation and any company body or person may enter into and carry into effect agreements for the working user management and maintenance subject to the provisions of this Act of any omnibus services within the city or on any route over which the Corporation are for the time being empowered to run omnibuses and subject (in the case of services authorised by statute) to the provisions of such statutes.

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(3) The Corporation and any such local authority company body or person as aforesaid may also enter into and carry into effect agreements for all or any of the following purposes (that is to say):—

- (a) The working user management and maintenance of any omnibuses lands depôts buildings sheds and property provided in connection with any such omnibus services as aforesaid by either of the contracting parties and the right to provide and use the same and to demand and take the fares and charges authorised in respect of such services;
- (b) The supply by any of the contracting parties under and during the continuance of any such agreement under this section of omnibuses and conveniences in connection therewith necessary for the purposes of such agreement and the employment of officers and servants;
- (c) The interchange accommodation conveyance transmission and delivery of traffic arising on or coming from or destined for any omnibus service of the contracting parties;
- (d) The payment collection and apportionment of the fares and charges and other receipts arising from any such omnibus service as aforesaid.

(4) The Corporation shall not enter into or carry into effect any agreement under the provisions of this section in relation to any omnibus service lands depôts buildings sheds or property beyond the city otherwise than with the consent of—

- (a) the local authority of the district within which such omnibus service lands depôts buildings sheds or property are situate; and
- (b) the county council as respects any main road in the county on which any such omnibus service is proposed to be run :

Provided that on complaint being made to the Minister of Transport that such consent is unreasonably withheld the Minister may if he thinks fit by order dispense with such consent.

(5) The Corporation shall not enter into or carry into effect any agreement under the provisions of this section in relation to any omnibus service outside a

A.D. 1928. circle having a radius of ten miles measured from the town hall of the city :

Provided that the provisions of this subsection shall not apply to any agreement in relation to an omnibus service to and from the county borough of Huddersfield.

(6) Notwithstanding anything contained in this section the Corporation shall not without the consent in writing in each case of the Halifax Corporation enter into or carry into effect any agreement with any local authority company body or person to run omnibuses along any road outside the city over which the Halifax Corporation are at the date on which such agreement is entered into or proposed to be entered into authorised to work or run tramways omnibuses or trolley vehicles or in competition with such tramways omnibuses or trolley vehicles.

PART IV.

WATER.

Power to
make water-
work.

15. Subject to the provisions of this Act the Corporation may construct and maintain in the county upon the lands and in the line and situation and according to the levels shown on the deposited plans and sections the waterwork described in this section with all necessary works conveniences and appliances in connection therewith.

The said waterwork is the following (that is to say) :—

An aqueduct conduit or line or lines of pipes in the township of Barden in the rural district of Skipton commencing by a junction with the existing aqueduct conduit or line of pipes from the Upper Barden reservoir and terminating by a junction with the existing aqueduct conduit or line of pipes (Work No. 9) constructed under the powers of the Bradford Corporation Waterworks Act 1892.

Limits of
deviation
for new
waterwork.

16. In the construction of the new waterwork the Corporation may deviate laterally from the line or situation thereof as shown on the deposited plans to any extent not exceeding the limits of lateral deviation shown on those plans and they may also deviate vertically from

the levels shown on the deposited sections to any extent not exceeding three feet upwards and to any extent downwards. A.D. 1928.
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17.—(1) For the purpose of constructing enlarging extending altering repairing cleansing or examining the new waterwork or any existing or authorised waterwork of the Corporation the Corporation may cause the water in any such work to be temporarily discharged into any available stream or watercourse Provided that water so discharged shall be as free as may be reasonably practicable from mud or solid or offensive matter. Temporary discharge of water into streams.

(2) In the exercise of the power conferred by this section the Corporation shall do as little damage as may be and shall pay compensation to all persons for all damage sustained by them by the exercise of such power the amount of compensation to be settled in default of agreement by arbitration.

(3) The powers of this section shall not be exercised so as to damage the railways works or property of any railway company.

18. Subject to the provisions of this Act the new waterwork shall for all purposes be deemed to form part of the water undertaking. New water-work to form part of water undertaking.

19.—(1) Where water is supplied by the Corporation to any hereditament to which this section applies the owner instead of the occupier shall if the Corporation so determine pay the rents rates and charges for the supply but such rents rates and charges may be recovered from the occupier and may if the occupier be not himself liable therefor under any lease or agreement be deducted by him from the rent from time to time due from him to the owner Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him after the service upon him of a notice to pay the said rents rates and charges. Rates payable by owners in certain cases.

(2) The hereditaments to which this section applies are—

- (a) in a rating area in which a resolution under subsection (1) of section 11 of the Rating and Valuation Act 1925 is in force any hereditament to which such resolution applies; and

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(b) elsewhere any hereditament let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year.

(3) The provisions of this section shall be in addition to and not in derogation of the provisions of section 72 of the Waterworks Clauses Act 1847.

Amendment
of section 35
of Water-
works
Clauses Act
1847.

20. The provisions of section 35 of the Waterworks Clauses Act 1847 shall in their application to the Corporation be read and construed as if the one-tenth part of the expense of providing and laying down pipes mentioned in that section were one-eighth part of such expense.

Mainten-
ance of
common
pipe.

21.—(1) When several houses or parts of houses in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute to the Corporation the amount of any expenses from time to time incurred by the Corporation in the repair of such pipe and their respective proportions of contributions shall be settled by the waterworks engineer of the Corporation or other officer duly authorised in that behalf by the Corporation.

(2) Any contributions payable under the provisions of this section shall be recoverable in the same manner as the water rents in respect of the houses or parts of houses are recoverable and with the like incidents.

Saving for
powers un-
der West
Riding
Drainage
Act.

22. Nothing in this Act shall prejudice or affect the operation of the West Riding of Yorkshire County Council (Drainage) Act 1923.

PART V.

LANDS.

Power to
acquire
lands for
new water-
work.

23. Subject to the provisions of this Act the Corporation may enter upon take and use all or any part of the lands delineated on the deposited plans relating to the new waterwork and described in the deposited book of reference which they may require for the purposes of that work.

24.—(1) The Corporation may in lieu of acquiring any lands for the purposes of the new waterwork acquire such easements only in such lands as they may require for such purposes and may give notice to treat in respect of such easements describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of those Acts.

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Corporation
may acquire
easements
only for
new water-
work.

(2) As regards any lands in respect of which the Corporation have acquired easements only under the provisions of this section the Corporation shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements have the same rights to use and cultivate the said lands at all times as if this Act had not passed.

(3) Provided always that nothing in this section contained shall authorise the Corporation to acquire by compulsion any such easements in any case in which the owner in his particulars of claim shall require the Corporation to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

25. Subject to the provisions of this Act the Corporation may enter upon and take and may hold and use for the purpose of protecting their waterworks against pollution fouling and contamination or for any other purpose of the water undertaking all or any of the lands described in the schedule to this Act so far as those lands are delineated on the deposited plans and described in the deposited book of reference.

Power to
take lands
for purposes
of water
under-
taking.

26. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or described in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county for the correction thereof and if it appear to the justices that the omission mis-statement or wrong description arose from

Correction
of errors in
deposited
plans and
book of
reference.

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Persons
under
disability
may grant
easements
&c.

27. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to
Corporation
to enter
upon pro-
perty for
survey and
valuation.

28. The Corporation and their surveyors officers and workmen and any person duly authorised in writing under the hand of the town clerk may at all reasonable times upon giving on the first occasion twenty-four hours' and on any subsequent occasion twelve hours' previous notice in writing enter upon and into the lands by this Act authorised to be taken and used or any of them for the purpose of surveying and valuing the said lands without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands.

Compensa-
tion in case

29. For the purpose of determining any question of disputed compensation payable in respect of lands

taken under the powers of this Act the following provisions shall apply and have effect (that is to say):—

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—
of recently
created
interest.

- (1) The arbitrator shall not take into account any building erected or any improvement or alteration made or any interest in land created after the first day of November one thousand nine hundred and twenty-seven and before the date of the passing of this Act if in the opinion of the arbitrator the erection of the building or the making of the improvement or alteration or the creation of the interest in respect of which the claim is made was not reasonably necessary and was carried out with a view to obtaining or increasing compensation under this Act:

- (2) Subject as is hereinafter in this section provided the arbitrator shall not take into account—

(a) any building erected after the date of the passing of this Act or any improvement or alteration of any premises (other than any improvement or alteration reasonably necessary for properly maintaining such premises) made after that date which in the opinion of the arbitrator materially enhances the value of such premises; or

(b) any interest in land greater than that of a quarterly tenant created after the date of the passing of this Act:

- (3) If at any time after the date of the passing of this Act and before the expiration of the period limited by this Act for the compulsory purchase of lands any person being the owner of or having any estate or interest in any premises which are liable to be acquired compulsorily under the powers of this Act gives notice in writing to the Corporation of his intention to erect any building upon or to make any improvement or alteration of or to create any such new interest as aforesaid in those premises (such intended building improvement alteration or new interest being specifically described in the notice) and the Corporation do not within one month after receiving any such notice serve upon such person notice to sell and convey or

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release his estate or interest in the said premises but serve such notice at any time after the expiration of the said period of one month—

(a) subsection (2) of this section shall not apply with respect to the building improvement alteration or new interest described as aforesaid; and

(b) subsection (1) of this section shall apply with respect to the said building improvement alteration or new interest as if the same had been erected made or created after the said first day of November and before the date of the passing of this Act:

- (4) The Corporation shall forthwith after the date of the passing of this Act send by post or deliver a copy of this section to all persons named in the deposited book of reference having an interest greater than that of a yearly tenant in any lands which are liable to be acquired compulsorily under the powers of this Act.

Limit of
time for
compulsory
purchase of
lands.

30. The powers of the Corporation for the compulsory purchase of lands under or for the purposes of this Act shall cease on the thirty-first day of October one thousand nine hundred and thirty-one.

Extinguish-
ment of
private
rights of
way.

31.—(1) All private rights of way over any lands which the Corporation are authorised by this Act to acquire compulsorily shall as from the date of the acquisition of such lands by the Corporation be extinguished.

(2) Provided that the Corporation shall make full compensation to all persons interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Power to
reinstate
owners of
property.

32. The Corporation may enter into and carry into effect agreements and arrangements with the owners of or other persons interested in any lands or buildings which may be acquired under the provisions of this Act with respect to the reinstatement of any such owners or other persons and with respect to the exchange of lands for that purpose and the Corporation may pay or receive money for equality of exchange.

33. For the protection of Veteripont Estates Limited and their assigns (in this section referred to as "the owners") the following provisions shall notwithstanding anything in this Act or shown on the deposited plans or contained in the deposited book of reference unless otherwise agreed in writing between the owners and the Corporation apply and have effect (that is to say) :—

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—
For protec-
tion of
Veteripont
Estates
Limited.

(1) Section 17 (For the protection of the Right Honourable Lord Hothfield) of the Bradford Corporation Waterworks Act 1892 shall continue to be of full force and effect for the protection of such of the lands of the owners as are not acquired by the Corporation under the powers of this Act:

(2) No water from any spring or stream of water upon any of the lands of the owners acquired by the Corporation under the powers of this Act which at the date of the passing of this Act flows over any lands owned by the owners at that date and not so acquired shall be impounded intercepted interfered with or diverted by the Corporation but the same shall remain available for the owners save and except any water from such springs streams rivulets or other waters as are at the date of the passing of this Act taken or authorised to be taken by the Corporation:

(3) (a) The Corporation shall not except by agreement with the owners acquire any part of such of the lands of the owners as are numbered 218 on the deposited plans for the urban district of Silsden and lie to the south of a straight line drawn due west through the northern boundary of Robin Hood Wood till it meets the wall running south from Rough Holden Farm and south of a straight line drawn from the north-east corner of Robin Hood Wood till it meets the northerly point of the field marked "Low Moor" on the deposited plans;

(b) If the Corporation request the owners to sell and convey to them the lands referred to in paragraph (a) of this subsection and the owners

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consent so to do the owners shall be entitled as a condition of such consent to require the Corporation in addition to purchasing the said lands to purchase the lands (situate outside the limits of land to be acquired marked on the deposited plans) which are shown by a red colour on the plan signed by Sir Walter Raine the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (of which plan copies have been deposited in the Committee and Private Bill Office of the House of Commons and in the Parliament Office House of Lords and with the Corporation and with the owners) and in pursuance of any such requirement the owners shall sell and convey to the Corporation and the Corporation shall purchase and acquire the lands so shown on the said plan. The consideration for such purchase and acquisition and for the purchase and acquisition of the said lands referred to in paragraph (a) of this subsection shall be such as may be agreed between the owners and the Corporation or as (failing such agreement) shall be determined in like manner as if the Corporation had acquired such lands compulsorily under the powers of this Act:

- (4) If the Corporation give notice to the owners under the powers of this Act that they require any part of the lands of the owners delineated on the deposited plans and described in the deposited book of reference and in the schedule to this Act (other than the lands described in paragraph (a) of subsection (3) of this section) the owners may by notice in writing require the Corporation to take the whole of such lands (other than as aforesaid) and thereupon the owners shall sell and the Corporation shall purchase the fee simple in possession of such lands:
- (5) (a) In the case of all lands of the owners acquired by the Corporation under the powers of this Act there shall be excepted and reserved in perpetuity to the owners all game woodcock plover snipe quail landrail wild fowl hares and

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rabbits with the exclusive right of preserving the same and of shooting fowling and sporting over such lands and of erecting thereon all necessary and proper huts butts and shelters and of burning the heather and doing all other things necessary or expedient for the better preservation of the rights hereby reserved to the owners (all of which rights are in this section referred to as "the sporting rights") and together also with a right of entry at all times for the purpose of the exercise as aforesaid of the sporting rights for the owners their lessees or tenants and the duly authorised friends and servants of the owners or of their lessees or tenants with or without horses dogs carts motor-cars and carriages;

(b) The conveyance or conveyances to the Corporation of such lands as aforesaid shall contain proper reservations and provisions securing to the owners their lessees and tenants and their respective friends and servants duly authorised as aforesaid the said sporting rights together with the use in common with the Corporation for the purposes of the exercise as aforesaid of the sporting rights of any roads existing over such lands at the date of the acquisition thereof by the Corporation (but only so long as the said roads are retained by the Corporation the Corporation affording however reasonable means of access for the purpose of the exercise as aforesaid of the sporting rights if the said roads are discontinued) and shall also contain provisions for preventing damage or injury to the said sporting rights;

(c) For the preservation of such game woodcock plover snipe quail landrail wild fowl hares and rabbits it shall be lawful for the owners in the name of the Corporation and at their own expense to commence and prosecute actions against any trespassers and poachers on such of the lands of the owners as are acquired by the Corporation under the powers of this Act notwithstanding such acquisition:

(6) (a) If the Corporation acquire the lands lying immediately to the north of the straight lines

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referred to in subsection (3) of this section and do not acquire (by agreement with the owners) the lands referred to in that subsection the Corporation shall within three months after the acquisition of such first-mentioned lands erect to the reasonable satisfaction of the owners a stone wall along the said straight lines provided that the owners shall permit the Corporation to take (at the cost of the Corporation in respect of labour and cartage but without requiring any payment therefor) from the nearest available quarry of the owners such quantity of stone of a suitable quality as the Corporation may require for the erection of the said wall and upon completion of the said wall to the reasonable satisfaction of the owners shall pay to the Corporation as a contribution towards the cost thereof the sum of two hundred and fifty pounds;

(b) The stone wall referred to in the last preceding paragraph and all stone walls at the date of the passing of this Act forming the boundary fences between the lands of the owners which may be acquired by the Corporation under the powers of this Act and adjoining lands at the date of the passing of this Act belonging to the owners and not so acquired shall be maintained by the Corporation in perpetuity to the reasonable satisfaction of the owners;

(c) The Corporation shall not use any barbed wire in connection with any stone wall on any land adjoining the property of the owners;

(d) The Corporation shall if required by the owners erect and maintain a suitable gate so as to permit of the existing bridle road from Ilkley to Morton Banks passing through the stone wall to be erected by the Corporation under the provisions of paragraph (a) of this subsection;

(e) If the events referred to in paragraph (b) of subsection (3) of this section shall happen the provisions of paragraphs (a) and (d) of this subsection and of so much of paragraph (b) thereof as relates to the stone wall referred to in the said paragraph (a) shall cease to have effect:

- (7) If the Corporation shall at any time determine to sell any land acquired by them from the owners under the powers of this Act they shall give written notice to the owners of their determination to sell the same and the owners shall be entitled upon giving to the Corporation written notice of their wish so to do at any time within three months of the receipt by them of the notice by the Corporation of such determination to purchase such land at a price to be agreed or failing agreement to be settled by arbitration under this section : A.D. 1928.
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- (8) For the purposes of subsections (2) (5) and (7) of this section and of so much of subsection (6) thereof as shall for the time being be in force the lands referred to in subsection (3) of this section (if and to the extent to which those lands are purchased by the Corporation) shall be deemed to be lands acquired by the Corporation from the owners under the powers of this Act :
- (9) Notwithstanding anything contained in the section of this Act of which the marginal note is " Compensation in case of recently created interest " the creation by the owners of a yearly tenancy of any agricultural holding comprised in the lands of the owners which the Corporation are entitled to acquire under the powers of this Act shall be deemed not to be the creation of an interest in land greater than that of a quarterly tenant :
- (10) Any difference which shall arise under the provisions of this section between the owners and the Corporation shall be referred to and determined by an arbitrator to be agreed upon or failing agreement to be appointed on the application of either party after notice in writing to the other by the President of the Surveyors' Institution and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

34. The following provisions for the protection of the county council shall unless otherwise agreed in writing apply and have effect with respect to the exercise For protec-
tion of West
Riding

A.D. 1928. of the powers conferred by the section of this Act
County whereof the marginal note is "Power to take lands
Council. for purposes of water undertaking":—

(1) If the Corporation acquire any part or parts
of the lands hereinafter mentioned (that is
to say):—

(a) such portions of the lands in the parish
of Oxenhope described in the schedule to
this Act or on the deposited plans as are
bounded by the Leeds and Hebden Bridge
main road in the urban district of Oxen-
hope and delineated and shown by pink
colour on the map marked "A" signed by
Lewis Mitchell on behalf of the Corporation
and by Herbert Raikes Hepworth on behalf
of the county council;

(b) the portion of the lands in the parish
of Draughton numbered 226 on the deposited
plans situate at the south side of the Skipton
and Otley main road and shown by pink
colour on the map marked "B" similarly
signed;

they shall within one month after such acqui-
sition give notice thereof in writing to the county
council:

(2) Within three months after the receipt of such
notice the county council may give notice to
the Corporation that they desire to purchase
for the purpose of road widening any of the
lands hereinbefore mentioned and shown by
pink colour on the said signed maps or either
of them or some portion of the said lands
Provided that the county council shall not be
entitled to acquire in pursuance of this section
any greater quantity of land than will be suffi-
cient for the purpose of widening the said
roads (a) in the case of the Leeds and Hebden
Bridge main road to 45 feet and (b) in the
case of the Skipton and Otley main road to
60 feet:

(3) If within two months from the date of such
notice the Corporation and the county council
are unable to agree as to the price to be paid

for such lands either party shall be at liberty to refer the matter to the arbitration of an official arbitrator appointed pursuant to the Acquisition of Land (Assessment of Compensation) Act 1919. A.D. 1928.

PART VI.

ELECTRICITY.

35. Where under the provisions of any Act or Order relating to the Corporation or the electricity undertaking the electricity limits are bounded by or abut upon any street such limits shall be deemed to extend to the centre of the street. Provided that nothing in this section shall be deemed to confer upon the Corporation any powers of using electricity in any such street or of supplying electricity for use therein which would not have been exerciseable by them if the provisions of this section had not been enacted or to empower or require the Corporation to supply to the owner or occupier of any premises situate outside the electricity limits electricity for those premises. As to streets forming boundary of electricity limits.

36.—(1) If any consumer of electricity supplied by the Corporation under the terms of any agreement uses the electricity supplied to him by the Corporation in any manner contrary to the terms of such agreement— Provisions as to supply of electricity by agreement.

- (a) the Corporation may if they think fit discontinue to supply electricity to such consumer;
- (b) the consumer shall in respect of all the electricity supplied to him by the Corporation within one year previous to the date of any demand in that behalf made upon him by the Corporation (whether they determine to discontinue the supply or not) be liable to pay to the Corporation at any higher rate which they may be for the time being charging for the supply of electricity for use in the manner or under the conditions in or under which such consumer used the electricity supplied to him; and
- (c) the Corporation in any case in which they discontinue the supply as aforesaid shall not be required to resume the supply until—
 - (i) they are satisfied that any electricity supplied to such consumer will be consumed

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in accordance with the terms of such agreement or of any proposed agreement; and

(ii) the consumer has paid to the Corporation the sum payable by him pursuant to the foregoing paragraph (b):

Provided that before discontinuing any such supply the Corporation shall give to the consumer taking the same seven days' notice in writing of their intention so to do and shall in such notice specify the respect in which the electricity has been or is being used contrary to the terms of such agreement.

(2) A consumer supplied with electricity by the Corporation under the terms of any agreement shall be deemed to be a person to whom the Corporation may be and are required to supply electricity within the meaning of section 43 (Penalty for failure to supply) of the Order of 1883 and the provisions of that section shall apply to the supply afforded by the Corporation under such agreement unless the provisions of that section are expressly excluded from application in any such agreement and if the Corporation fail to supply electricity to such consumer they shall not be liable for any damages occasioned to such consumer by reason of such failure unless the same is caused by or in consequence of the wilful neglect or default of the Corporation:

Provided that the provisions of this subsection shall not operate to deprive any consumer of electricity supplied by the Corporation under the terms of any agreement existing at the date of the passing of this Act of any right to which he would be entitled but for the said provisions.

Use for lighting purposes of electricity supplied for power.

37.—(1) No consumer shall without the consent in writing of the Corporation use or suffer to be used (whether after transformation or conversion or not) for purposes of lighting or illuminating or for any process operation or purpose involving or requiring the use of light (all of which purposes are in this section referred to as "lighting purposes") the whole or any part of any electricity supplied to him by the Corporation for any other purpose.

(2) Any consumer who without such consent shall use or suffer to be used for lighting purposes electricity supplied to him by the Corporation through a meter fixed for the purpose of ascertaining the value of the

A.D. 1928.

supply to him of electricity agreed to be supplied to him for any purpose other than lighting purposes shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and shall in addition be liable to pay to the Corporation at such higher rate as they may be for the time being charging for the supply of electricity for the purpose for which the electricity has been or is being used by the consumer for all or any portion of the electricity which has been supplied to him for any other purpose within one year previous to the date when the Corporation shall proceed for the recovery of any such penalty as aforesaid.

(3) Any court having jurisdiction to impose such a penalty as aforesaid may and on the application of the Corporation shall decide as to the portion (if any) of electricity in respect of which such higher charge as aforesaid shall be payable to the Corporation.

(4) The provisions of section 18 of the Electric Lighting Act 1909 shall apply to any person whom the Corporation have reasonable grounds for believing to be acting contrary to the provisions of this section.

38.—(1) The powers conferred by section 24 of the Electric Lighting Act 1882 as extended by section 16 of the Electric Lighting Act 1909 of entering premises for the purposes mentioned in those sections shall extend to enable any officer appointed by the Corporation to enter any premises to which electricity is or has been supplied by the Corporation (whether for the time being occupied or not) and in or upon which he has reason to believe that there is or has been any contravention of any of the Acts or Orders relating to the electricity undertaking or of any byelaw or regulation made thereunder and to inspect such premises and any electric lines wires fuses casings switches fittings lamps lamp-holders or other apparatus therein and (in any case in which any such contravention is found to exist or to have existed) to enable the Corporation to cut off and disconnect the supply of electricity to the premises.

Further
powers as to
entry upon
premises.

(2) Where any premises which officers appointed by the Corporation are entitled to enter in pursuance of the said section 24 as extended by the said section 16 of the Electric Lighting Act 1909 and by this section are unoccupied the Corporation may after giving not less than

A.D. 1928. — forty-eight hours' notice to the owner thereof or if he is unknown to them and if he cannot be ascertained by them after diligent inquiry by affixing such notice upon a conspicuous part of the premises authorise any officer appointed by them to enter the premises forcibly doing no unnecessary damage.

(3) Any person who shall refuse or neglect to admit any officer appointed by the Corporation to any premises which he is entitled to enter in pursuance of the said section 24 as extended as aforesaid or shall hinder any such officer from entering any such premises or from exercising the powers contained in any of the said sections shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Power to
construct
electrical
sub-stations
under
streets.

39. Subject to the provisions of the Electricity (Supply) Acts 1882 to 1926 and of the Order of 1883 the Corporation may construct and maintain in or under any street repairable by the inhabitants at large or dedicated to public use within the electricity limits sub-stations transforming stations and other works in connection with the electricity undertaking and may in any such street as aforesaid provide and maintain all such means of access and approach to such sub-stations transforming stations and works as may be necessary or convenient:

Provided that the Corporation shall not construct any such sub-station transforming station or work—

- (a) in or upon any bridge carrying a street over a railway of a railway company or the approaches thereto or under any bridge carrying such a railway over a street or within ten feet of any abutment of any such bridge; or
- (b) in any street belonging to or repairable by a railway company and forming the approach to any station or depôt of such company; or
- (c) so as to obstruct the access to or exit from any station or depôt of a railway company constructed and maintained under statutory authority;

except with the consent in writing of the railway company.

40. The Corporation may levy and recover such charges as they think fit for taking at the request of and for the convenience of any consumer at a time other than that of the periodical meter readings the reading of any electricity meter fixed in any premises provided that such charges shall not exceed the sum of two shillings and sixpence for each reading.

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Charges for special readings of electricity meters.

41.—(1) A notice to the Corporation from a consumer for the discontinuance of a supply of electricity shall not be of any effect unless it be in writing signed by or on behalf of the consumer and left at or sent by post to the head offices of the electricity undertaking.

Notice to discontinue supply of electricity.

(2) Notice of the effect of this section shall be endorsed upon every demand note for charges for electricity.

42. The Corporation may if they think fit make an allowance by way of discount not exceeding the rate of five per centum on all sums of money due to the Corporation for the supply of electricity from any person who pays the same within such time of the demand thereof as the Corporation think fit to prescribe in that behalf and notice to that effect shall (if and so long as the Corporation shall allow such discount) be endorsed on every demand note in respect of such charges. Provided that the Corporation shall make the same allowance to all consumers under similar conditions.

Discounts for prompt payments.

43. In any case in which the Corporation lawfully cut off a supply of electricity by reason of any act omission or default of a consumer or any other person they may recover from the person to whom the supply was theretofore furnished or from any other person on account of whose act omission or default such supply was cut off the expenses incurred by them in such cutting off in like manner as charges for electricity are recoverable by the Corporation.

Power to recover cost of cutting off supplies.

44.—(1) The maximum electrical power with which any consumer shall be entitled to be supplied by the Corporation shall not include any supply of electricity taken on extraordinary occasions or as a stand-by supply unless such consumer shall pay to the Corporation such minimum annual sum as will give them a reasonable return on the capital expenditure and will

As to maximum power which may be demanded.

A.D. 1928. — cover other standing charges incurred by the Corporation in order to meet the possible maximum demand for the premises of such consumer the sum so to be paid to be determined in default of agreement by arbitration in the manner provided by section 28 (Arbitration) of the Electric Lighting Act 1882.

(2) The provisions of this section shall not operate to deprive any consumer of electricity supplied by the Corporation under the terms of any agreement existing at the date of the passing of this Act of any right to which he would be entitled but for the said provisions.

Power to
cut off or
refuse
supplies of
electricity
in certain
cases.

45. The Corporation may cut off the supply of electricity or refuse to supply electricity to any person if after the expiration of such period from the date of demand as the Corporation may from time to time determine there remains unpaid any part of any charge or sum due to the Corporation from that person in respect of any premises occupied or formerly occupied by him for the supply of electricity or gas or for meter rent in respect of the supply of electricity or gas or for the hire or the supply on hire purchase terms of electrical or gas stoves fittings or appliances which the Corporation are under obligation to maintain.

As to
charges
for electric
fittings.

46. Any payment due to the Corporation for the sale or hire of lamps meters electric lines fuses switches fittings lamp-holders motors and other apparatus and things for lighting and motive power or other purposes or in respect of the provision of materials or for executing works under their statutory powers may be recovered summarily as a civil debt but any such payment shall only be so recoverable when the sum due to the Corporation comprises in addition charges for electricity supplied or is an inclusive amount comprising charges for electricity supplied as well as in respect of any of the other matters and things referred to in this section.

PART VII.

SANITARY PROVISIONS.

Further
provisions as
to sanitary
conve-
niences.

47.—(1) The owner of two or more sanitary conveniences within the city provided for or in connection with two or more separate dwelling-houses and used in common by the occupiers of such dwelling-houses shall

allot such sanitary conveniences to the occupiers of particular dwelling-houses so as to ensure that the same are allocated proportionately (as nearly as may be) amongst such dwelling-houses. A.D. 1928.
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(2) The owner of any such sanitary conveniences shall cause to be affixed to the door or walls of each such sanitary convenience a notice identifying the dwelling-house the occupiers of which are entitled to use such sanitary convenience.

(3) Any owner who shall fail to comply with the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

48.—(1) It shall not be lawful for any person to use any ashpit or dustbin the contents of which are intended for removal by or on behalf of the Corporation for any purpose other than the deposit of dust cold ashes or other house refuse (not being of a liquid or partly liquid character). Restriction
as to use of
dustbins.

(2) Any person contravening the provisions of this section shall be liable to a penalty not exceeding ten shillings.

49. The proviso to section 56 (Regulation dustbins) of the Bradford Corporation Act 1910 is hereby repealed. Repeal of
enactment
relating to
dustbins.

50.—(1) When in pursuance of any statute or by-law in force in the city the plan of any new building in connection with which a movable dustbin is required to be provided is deposited with the Corporation for approval the person depositing such plan shall mark thereon the position in which it is intended that the dustbin provided in connection with the said building shall be placed. Require-
ments as to
placing of
dustbins.

(2) The Corporation may in approving the plan either approve the position so marked or make an order (a copy of which shall be delivered with the notice of approval of the plan) fixing such other position as they may think fit and thereafter they may from time to time either at their own discretion or on the application of the owner or occupier of the building make orders varying the position so approved or fixed.

(3) Notice in writing of any approval or order given or made under subsection (2) of this section shall be

A.D. 1928. given by the Corporation to the occupier of the building to which such approval or order relates within seven days after the giving or making thereof or (if at the time of such giving or making the building is not occupied) within seven days after such building is first occupied thereafter. In the case of an approval or order given or made on the application of any person other than the occupier of the building to which the same relates the Corporation shall also give notice in writing of such approval or order to such person within seven days after the giving or making thereof.

(4) The occupier of any building with respect to which any approval or order of the Corporation has been given or made under this section shall place and keep placed the dustbin provided in connection with such building in the position for the time being approved or fixed by the order.

(5) Any person failing to comply with any of the provisions of this section shall be liable to a penalty not exceeding forty shillings. Provided that the Corporation shall not institute proceedings against any person for failing to comply with the provisions of subsection (4) of this section if he complies with the said provisions within seven days after being required by notice in writing by the Corporation so to do and so long as he continues so to comply.

Medical
practitioners
to notify
cases of
food poison-
ing.

51.—(1) Every medical practitioner attending on a person who is or is suspected to be suffering from food poisoning shall forthwith on becoming aware that such person is or is suspected to be so suffering send to the medical officer a notification of the case stating the name of such person and the place at which such person is.

(2) The Corporation shall pay to every medical practitioner for each notification duly sent by him in accordance with this section a fee of two shillings and sixpence if the case occurs in his private practice and of one shilling if the case occurs in his practice of medical officer of any public body or institution.

(3) Every person required by this section to give a notification who fails to give the same in accordance with this section shall be liable to a penalty not exceeding forty shillings.

52.—(1) Any tent van shed or similar structure standing upon land abutting upon a street shall for the purpose of the application of section 3 of the Public Health (Buildings in Streets) Act 1888 to the city be deemed to be a house or building within the meaning of those words where they first occur in the said section.

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 Provisions
 as to tents
 vans &c.

(2) It shall not be lawful without the written consent of the Corporation to place any tent van shed or similar structure used for human habitation so as to stand upon any square court alley or passage to which the public have access or which is required by law to be left free from obstructions.

(3) Any person who offends against the provisions of subsection (2) of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

53.—(1) No tent van shed or similar structure used or intended to be used for human habitation shall be placed or kept on any land situate within the city without the previous approval of the Corporation.

Prohibition
 of tents vans
 &c.

(2) It shall not be lawful for any person without the previous consent of the Corporation to let or permit to be used any land for occupation by any tent van shed or similar structure used or intended to be used for human habitation unless and until such land is provided with sufficient roads and sewers and furnished with a separate supply of water to the satisfaction of the Corporation.

(3) Any person aggrieved by the withholding by the Corporation of their approval or consent under the provisions of this section may within twenty-one days from the date of the decision of the Corporation appeal to a court of summary jurisdiction and such court may make such order in the premises and on such terms and conditions as to the court may seem meet. The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

(4) This section shall not apply to (a) a tent van shed or similar structure which is not used or intended to be used by the occupier as a sole or principal means of habitation for an unbroken period of at least three months or (b) any person dwelling in a tent or van or other similar structure who is a roundabout proprietor

A.D. 1928. travelling showman or stallholder not being a pedlar or hawker.

(5) Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Power to enter premises.

54. The provisions of section 102 (Power of entry of local authority) and section 103 (Penalty for disobedience of order) of the Public Health Act 1875 shall extend and apply to the purposes of this Part of this Act as if those purposes had been mentioned in the said section 102.

PART VIII.

FINANCE.

Expenses of execution of Act.

55. All expenses incurred by the Corporation in carrying into execution the provisions of this Act (except such expenses as are to be paid out of borrowed money) shall be paid as follows (that is to say) :—

- (1) Expenses incurred for purposes of the tramway undertaking out of the tramway revenue;
- (2) Expenses incurred for purposes of the omnibus undertaking out of the omnibus revenue or if that revenue be insufficient for the purposes to which it is applicable the deficiency shall be made up out of the tramway revenue;
- (3) Expenses incurred for purposes of the water undertaking out of the water revenue;
- (4) Expenses incurred for purposes of the electricity undertaking out of the electricity revenue or if that revenue be insufficient for the purposes to which it is applicable the deficiency shall be made up out of the district fund and the general district rate;
- (5) Expenses incurred for any of the purposes of Part VII (Sanitary provisions) of this Act out of the district fund and the general district rate;
- (6) Expenses incurred for all other purposes (not otherwise provided for in this Act), out of the city fund and the city rate.

A.D. 1928.

Provided that as respects such purposes as are referred to in the foregoing paragraphs (1) (2) and (3) respectively if in any year the revenue referred to in relation to those purposes is insufficient for the purposes to which it is applicable the deficiency shall be made up out of the city fund and the city rate.

56.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the payment of the costs charges and expenses referred to in the section of this Act of which the marginal note is "Costs of Act" the sum requisite for that purpose and in order to secure the repayment thereof and the payment of interest thereon they may mortgage or charge the city fund and the city rate and they shall pay off all moneys so borrowed within the period of five years from the passing of this Act (which period shall for the purposes of any enactment incorporated with or applied by this Act be the prescribed period). Power to borrow.

(2) (a) The Corporation may also with the consent of the Minister of Health borrow such money as may be necessary for any of the purposes of this Act other than the purposes of Part II (Tramways) Part III (Omnibuses) and Part VI (Electricity) and may with the consent of the Minister of Transport as respects the said Parts II and III and of the Electricity Commissioners as respects the said Part VI borrow such moneys as may be necessary for any of the purposes of those Parts respectively.

(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister or Commissioners with whose consent it is borrowed and that period shall be the prescribed period for the purposes of the enactments incorporated with or applied by this Act.

(c) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge such revenues funds and rates as may be prescribed by the Minister or Commissioners with whose consent the money is borrowed.

(3) The provisions of this section prescribing or relating to the prescription of the revenues funds and rates which may be mortgaged or charged shall

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A.D. 1928. — not limit the powers conferred on the Corporation by section 108 (Power to use one form of mortgage for all purposes) of the Bradford Corporation Act 1913.

Section 234
of Public
Health Act
1875 not to
apply.

57. The powers of borrowing money given by this Act shall not be restricted by any of the regulations contained in section 234 (Regulations as to exercise of borrowing powers) of the Public Health Act 1875 and in calculating the amount which the Corporation may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

Incorporat-
ing certain
financial
provisions of
former Acts.

58. The sections of the following Acts which are specified in this section shall extend and apply mutatis mutandis to and in relation to the purposes of this Act as if those sections were re-enacted in this Act (that is to say) :—

The Bradford Corporation (Tramways Gas and Various Powers) Act 1900—

- Section 51 (As to sinking fund);
- Section 52 (Power to re-borrow);
- Section 53 (Receiver);
- Section 54 (Protection of lenders from inquiry);
- Section 55 (Corporation not to regard trusts).

The Bradford Corporation Act 1902—

- Section 82 (Provisions as to mortgages);
- Section 84 (Mode of repayment);
- Section 86 (Application of money borrowed).

PART IX.

MISCELLANEOUS.

Amendment
of Local
Government
and other
Officers'
Superan-
nuation Act
1922.

59.—(1) The Local Government and other Officers' Superannuation Act 1922 (in this section referred to as "the Act of 1922") shall in its application to the Corporation and their officers and servants be amended as follows (that is to say) :—

In the case of any officer or servant of the Corporation who after occupying in the service of the Corporation a post not designated as an established post for the purposes of the Act of 1922 is appointed to a post so designated the period of service of such officer or servant with the

Corporation before such appointment shall be reckoned for the purpose of calculating the amount of the superannuation allowance payable to him under the provisions of the Act of 1922 provided that he shall pay to the Corporation such a sum as would have been payable to them in lieu of transfer value in accordance with subsection (2) of section 8 of the Act of 1922 if he had transferred from the service of another local authority to the service of the Corporation under the conditions mentioned in that subsection and the rules made by the Minister of Health under the said section 8 shall apply to any such sum and the mode of payment thereof.

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—

(2) Words and expressions to which meanings are assigned by the Act of 1922 have in this section the same respective meanings.

60. For the protection of the urban district council of Shipley (in this section referred to as "the Shipley Council") the following provisions shall unless otherwise agreed in writing between the Corporation and the Shipley Council have effect (that is to say):—

For protec-
tion of
Shipley
Urban
District
Council.

- (1) Nothing in the sections of this Act of which the marginal notes are respectively "Power to run omnibuses outside the city" and "Working and other agreements" shall alter or affect the rights of the Shipley Council under the indenture of lease dated the eighth day of December one thousand nine hundred and twenty-seven and made between the Shipley Council of the one part and the Corporation of the other part or entitle the Corporation at any time during the term of the said lease to act in any manner contrary to the covenants conditions restrictions and obligations to be performed and observed by the Corporation which are contained in the said indenture:
- (2) The Corporation shall not except with the consent in writing of the Shipley Council exercise the powers of the section of this Act of which the marginal note is "Power to construct electrical sub-stations under streets" in any part of a street in the urban district of Shipley.

A.D. 1928.

Application
of Arbitra-
tion Act
1889.

61. Where under this Act any question or dispute other than questions or disputes to which the provisions of the Lands Clauses Acts apply is to be referred to an arbitrator or to arbitration then unless other provision is made the reference shall be subject to the provisions of the Arbitration Act 1889.

Recovery of
demands in
county
court.

62. Proceedings for the recovery of any demand made under the authority of this Act whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of
penalties
&c.

63. Save as otherwise by this Act expressly provided all offences against this Act or any byelaw made thereunder and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any such byelaw may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Informa-
tions by
whom to be
laid.

64. Save as herein expressly provided all complaints and informations under or for the breach of any of the provisions of this Act or of any byelaw made thereunder may be made and laid by any officer of the Corporation duly authorised in that behalf or by the town clerk or by any police officer acting for or within the city.

Saving for
indictments.

65. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

As to
appeal.

66. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Corporation or of or by any officer or valuer of the Corporation or by any conviction or order by a

court of summary jurisdiction under any provision of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any order made by a court of summary jurisdiction in respect of any proceedings pursuant to this Act the Corporation may appeal and in the like manner.

A.D. 1928.

67. The provisions of sections 182 to 185 of the Public Health Act 1875 so far as they relate to bye-laws made by an urban sanitary authority shall apply to all byelaws made by the Corporation under the powers of this Act.

Confirma-
tion of
byelaws.

68. The provisions of section 267 of the Public Health Act 1875 shall apply with respect to any notices orders or other documents required or authorised to be served or given by the Corporation under this Act.

As to
service of
notices &c.

69. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of this Act as if the same were re-enacted therein.

Application
of section 265
of Public
Health Act
1875.

70. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method of determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts Provided that where any such compensation costs damages or expenses is or are directed or authorised to be paid or recovered in addition to any penalty for any offence the amount of such compensation costs damages or expenses in case of dispute may be ascertained by the court before whom any offender is convicted.

Compensa-
tion how to
be deter-
mined.

71. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Judges &c.
not dis-
qualified.

72.—(1) The Minister of Health may direct any inquiries to be held by his inspectors which he may deem necessary in regard to the exercise of any powers conferred upon him by or the giving of any consents under this Act and the inspectors of the Minister of Health shall for the purposes of any such inquiry have

Inquiries by
Minister of
Health.

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Act, 1928.

A.D. 1928. — all such powers as they have for the purposes of inquiries directed by that Minister under the Public Health Act 1875.

(2) The Corporation shall pay to the Minister of Health any expenses incurred by that Minister in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Minister not exceeding five guineas a day for the services of such inspector.

Inquiries by
Minister of
Transport.

73. In respect of the exercise of any powers or duties conferred on the Minister of Transport or the giving by him of any consents under this Act or any existing Act or Order of the Corporation the provisions of Part I of the Board of Trade Arbitrations &c. Act 1874 shall apply as if the Minister of Transport were referred to therein in lieu of the Board of Trade and as if in section 4 of that Act the words "under the seal of the Minister of Transport" were substituted for the words "by writing under the hand of the President or of one of the secretaries of the Board."

Powers of
Act cumulative.

74. All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Corporation or such committee (as the case may be) may exercise such other powers and shall be entitled to such other rights and remedies as if this Act had not been passed :

Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

Crown
rights.

75. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Costs of Act.

76. All costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the city fund and the city rate or out of money borrowed under the authority of this Act for that purpose.

The SCHEDULE referred to in the
foregoing Act.

A.D. 1928.

DESCRIPTION OF LANDS TO BE ACQUIRED BY THE
CORPORATION FOR PURPOSES OF THE WATER
UNDERTAKING.

NOTE.—The Ordnance map referred to in the following descriptions is the $\frac{1}{2500}$ scale Ordnance map of Yorkshire (West Riding) and the sheets of the said Ordnance map also referred to in the following descriptions are of the following respective editions :—

Number of Sheet.				Edition.
CCXV.	6 and 7	-	-	First edition 1894.
CLXXV.	8 and 12	-	-	1908.
CC.	13 and 14	-	-	1908.
CCXV.	1 2 3 4 7 and 8	-	-	1908.
CLXVIII.	7 and 8	-	-	1909.
CLXXV.	4	-	-	1909.
CLXXVI.	1	-	-	1909.

The parish district and county borough boundaries referred to in the following descriptions are those existing at the respective dates of publication of the sheets of the Ordnance map and shown on such sheets.

In the urban district of Oxenhope—

(1) Lands comprising the enclosure numbered 773 on the Ordnance map sheets CCXV. 1 and CC. 13 ;

(2) Lands comprising the enclosure numbered 776 on the Ordnance map sheets CCXV. 1 and CC. 13 and 14 the enclosures numbered 762 763 and 764 on the Ordnance map sheets CCXV. 2 and CC. 14 the enclosure numbered 765 on the Ordnance map sheets CCXV. 1 and 2 and CC. 13 and 14 the enclosure numbered 766 on the Ordnance map sheets CCXV. 1 and 2 and the enclosures numbered 621 and 622 on the Ordnance map sheet CCXV. 2 ;

(3) Lands comprising the enclosures numbered 615 and 616 on the Ordnance map sheet CCXV. 2 and so much of the enclosure numbered 614 on that sheet as is situate north-westward of an imaginary line drawn between a point on the southern boundary of that enclosure 15·2 chains or thereabouts measured in an easterly direction from the south-western corner of the said enclosure and a point on the north-eastern boundary of the said enclosure 12·5 chains or thereabouts measured in a south-easterly direction from the northernmost corner of that enclosure ;

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(4) Lands comprising the enclosure numbered 485 on the Ordnance map sheet CCXV. 2 ;

(5) Lands comprising the enclosures numbered 587 497 498 586 503 581 504 580 505 574 and 571 on the Ordnance map sheet CCXV. 2 ;

(6) Lands comprising the enclosures numbered 502 507 573 572 568 567 517 and 518 on the Ordnance map sheet CCXV. 2 ;

(7) Lands comprising the enclosure numbered 557 on the Ordnance map sheet CCXV. 2 ;

(8) Lands comprising the enclosures numbered 499 474 473 500 501 472 509 510 514 516 515 522 523 524 525 and 526 on the Ordnance map sheet CCXV. 2 ;

(9) Lands comprising the enclosures numbered 471 470 467 466 468 and 469 on the Ordnance map sheet CCXV. 2 ;

(10) Lands comprising the enclosures numbered 556 554 and 555 on the Ordnance map sheet CCXV. 2 ;

(11) Lands comprising the enclosures numbered 549 547 548 543 542 541 530 529 and 531 on the Ordnance map sheet CCXV. 2 ;

(12) Lands comprising the enclosures numbered 120 121 and 119 on the Ordnance map sheet CCXV. 3 and the enclosure numbered 53 on that sheet and on the Ordnance map sheet CCXV. 7 (edition of 1908) ;

(13) Lands comprising the enclosure numbered 115 on the Ordnance map sheet CCXV. 3 ;

(14) Lands bounded by an imaginary line commencing at the point on the eastern side of the roadway leading in a southerly direction from the southern extremity of Stairs Lane at which the boundary between the said urban district of Oxenhope and the parish of Wadsworth in the rural district of Todmorden intersects that roadway (such point being designated Stone Heap Stoop) passing thence along the said boundary in a south-easterly direction for a distance of 35·5 chains or thereabouts to the point thereon known as Yeoman Stoop thence in a southerly direction for a distance of 24·3 chains or thereabouts to the point at which that boundary meets the western side of the road leading from Hebden Bridge to Keighley thence in a northerly direction along the said western side of the said road to the northern boundary of the enclosure partly shown on the Ordnance map sheet CCXV. 2 and thereon numbered 478 thence in a westerly direction along the said northern boundary and the northern boundary of the enclosure numbered 770 on the Ordnance map sheets CCXV. 1 2 and 6 to a point on the said northern boundary of the last-mentioned enclosure 3·7 chains or thereabouts southward of the south-eastern corner of the enclosure numbered 771 on the Ordnance map sheet CCXV. 1 thence in a south-westerly direction

for a distance of half a chain or thereabouts to the eastern side of the said roadway leading in a southerly direction from the southern extremity of Stairs Lane thence along the said eastern side of the said roadway to the point of commencement hereinbefore described of the said imaginary line ;

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(15) Lands bounded by an imaginary line drawn from the point in the eastern side of the said road from Hebden Bridge to Keighley at which that road is intersected by the boundary between the said urban district of Oxenhope and the parish of Wadsworth in the rural district of Todmorden passing thence in a southerly direction along the said boundary for a distance of 8 chains or thereabouts thence in an easterly direction across Will's Allotment for a distance of 36·8 chains or thereabouts to the south-western corner of the enclosure numbered 41 on the Ordnance map sheet CCXV. 6 thence along the south-western boundaries of the enclosures numbered 41 40 and 27 on the last-mentioned sheet to the south-easternmost corner of the last-mentioned enclosure thence in a south-easterly direction across the enclosure numbered 13 on the said sheet to the junction of the fence forming the eastern boundary of the last-mentioned enclosure with the northern boundary of the enclosure numbered 8 on the said sheet thence in an easterly direction across the enclosure numbered 9 on the said sheet to the south-westernmost corner of the enclosure numbered 10 on the said sheet thence in an easterly direction along the southern boundary of the last-mentioned enclosure and of the enclosure numbered 56 partly on the said sheet and partly on the Ordnance map sheet CCXV. 7 (first edition 1894) to the south-eastern corner of the last-mentioned enclosure thence in the same direction to a point in the western side of Nab Water Lane 7·5 chains or thereabouts measured in a north-westerly direction from the intersection of that road by the boundary between the said urban district of Oxenhope and the parish of Warley thence in a north-westerly direction along the said western side of the said lane to the southernmost corner of the enclosure numbered 34 on the Ordnance map sheet CCXV. 6 thence in a north-westerly direction along the south-western boundary of the last-mentioned enclosure to Far Peat Lane thence in a south-westerly direction along the north-western boundaries of the enclosures numbered 35 37 and 13 on the last-mentioned sheet to the southernmost corner of the common lands known as Great Peat Moss thence in a north-westerly direction for a distance of 21 chains or thereabouts along the western boundary of the said common lands to the north-western corner of those common lands thence in a north-westerly direction for a distance of 19·6 chains or thereabouts to the southernmost corner of the enclosure numbered 476 on the Ordnance map sheet CCXV. 2 thence in a north-westerly direction for a distance of 5·4 chains or thereabouts along the western boundary of the last-mentioned enclosure thence in a

A.D. 1928. — westerly direction for a distance of 0·5 chain or thereabouts to a point in the eastern boundary of the enclosure numbered 480 on the last-mentioned sheet 2·3 chains or thereabouts measured in a northerly direction from the south-easternmost corner of that enclosure thence in a southerly direction to the said south-easternmost corner thence in a westerly direction along the southern boundary of the last-mentioned enclosure to the eastern side of the said road from Hebden Bridge to Keighley thence in a southerly direction along the said eastern side of the said road to the point of commencement hereinbefore described of the said imaginary line ;

(16) Lands bounded by an imaginary line commencing at a point in the boundary between the said urban district of Oxenhope and the county borough of Halifax 8·5 chains or thereabouts measured in an easterly direction from the point of intersection of the last-mentioned boundary and the boundary between the said parish of Warley and the said county borough of Halifax passing thence in a north-easterly direction for a distance of 15·7 chains or thereabouts along the western side of a ditch crossing the enclosure numbered 52 on the Ordnance map sheet CCXV. 7 (first edition 1894) thence in a south-easterly direction for a distance of 3·8 chains or thereabouts along the southern boundary of certain common lands to the south-easternmost corner of such common lands thence in a north-easterly direction to a point in the southern boundary of the enclosure numbered 75 on the last-mentioned sheet 11·6 chains or thereabouts measured in an easterly direction from the south-western corner of that enclosure thence along the said southern boundary in a north-easterly direction for a distance of 2·6 chains or thereabouts and in an easterly direction for a distance of 5·7 chains or thereabouts thence in a southerly direction for a distance of 22·3 chains or thereabouts to a point in the said boundary between the urban district of Oxenhope and the county borough of Halifax 31·9 chains or thereabouts measured in an easterly direction from the point of intersection of the last-mentioned boundary with the said boundary between the parish of Warley and the county borough of Halifax and thence in a westerly direction along the said boundary between the urban district of Oxenhope and the county borough of Halifax to the point of commencement hereinbefore described of the said imaginary line.

In the urban district of Denholme—

(1) Lands comprising the enclosure numbered 95 on the Ordnance map sheet CCXV. 8 ;

(2) Lands comprising the enclosures numbered 86 85 88 84 78 79 76 and 74 on the Ordnance map sheet CCXV. 8 ;

(3) Lands comprising the enclosures numbered 26 27 28 and 29 on the Ordnance map sheet CCXV. 8 ;

(4) Lands comprising the enclosure numbered 36 on the Ordnance map sheet CCXV. 8 ; A.D. 1928.

(5) Lands comprising the enclosure numbered 13 on the Ordnance map sheet CCXV. 8 ;

(6) Lands comprising so much of the enclosure numbered 11 on the Ordnance map sheets CCXV. 4 and 8 as is situate south-eastward of an imaginary line drawn in a north-easterly direction from a point on the northern side of Thornton Moor Road 10 chains or thereabouts measured in a westerly direction from the south-eastern corner of the said enclosure to a point in the northern boundary of the said enclosure 3·5 chains or thereabouts measured in a westerly direction from the north-easternmost corner of that enclosure ;

(7) Lands comprising the enclosures numbered 215 284 and 285 on the Ordnance map sheet CCXV. 8 and so much of the enclosures numbered 216 282 281 279 278 and 277 on the said sheet as is situate westward of an imaginary line drawn in a northerly direction from a point in the northern side of Black Edge Lane 5·6 chains or thereabouts measured in an easterly direction from the south-eastern corner of the said enclosure numbered 215 to a point in the north-western boundary of the said enclosure numbered 277 2·2 chains or thereabouts measured in a north-easterly direction from the north-western corner of the last-mentioned enclosure ;

(8) Lands comprising the enclosures numbered 214 217 213 218 166 165 167 and 168 on the Ordnance map sheet CCXV. 8 and so much of the enclosures numbered 160 162 and 163 on the said sheet as is situate north-westward of an imaginary line drawn in a north-easterly direction from a point in the northern side of Foreside Lane 2·2 chains or thereabouts measured in an easterly direction from the south-western corner of the said enclosure numbered 160 to a point in the northern boundary of the said enclosure numbered 163 4·4 chains or thereabouts measured in an easterly direction from the north-western corner of that enclosure and so much of the enclosures numbered 164 219 and 220 on the said sheet as is situate westward of an imaginary line drawn in a northerly direction from the last-mentioned point to a point in the southern side of Black Edge Lane 1·3 chains or thereabouts measured in an easterly direction from the north-western corner of the said enclosure numbered 220 ;

(9) Lands comprising so much of the enclosures numbered 131 and 132 on the Ordnance map sheet CCXV. 8 as is situate north-westward of an imaginary line drawn in a north-easterly direction from a point in the eastern boundary of the enclosure numbered 128 on the said sheet 1·4 chains or thereabouts measured in a southerly direction from the north-eastern corner of the last-mentioned enclosure to a point in the southern side of

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A.D. 1928. Foreside Lane 7·5 chains or thereabouts measured in an easterly direction from the north-western corner of the said enclosure numbered 131.

In the urban district of Silsden—

Lands bounded by an imaginary line commencing at the westernmost corner of the enclosure numbered 416 on the Ordnance map sheet CLXXXV. 4 passing thence along the north-western and northern boundaries of that enclosure to the north-eastern corner thereof thence in a northerly direction along the western boundary of the enclosure numbered 415 on the said sheet to the north-western corner of that enclosure thence in an easterly and south-easterly direction along the northern boundary of the said enclosure numbered 415 to the point at which that boundary meets the boundary between the said urban district of Silsden and the parish of Addingham in the rural district of Skipton thence in a south-easterly direction along the last-mentioned boundary and the boundary between the urban districts of Ilkley and Silsden to the junction thereof with the boundary between the rural district of Keighley and the urban district of Ilkley and the boundary between the rural district of Keighley and the urban district of Silsden thence in a south-westerly direction along the last-mentioned boundary to the easternmost corner of the enclosure numbered 339 on the Ordnance map sheets CLXXXV. 12 and 8 thence along the north-eastern boundary of the last-mentioned enclosure to the northernmost corner of that enclosure thence along the south-eastern and southern boundary of the enclosure numbered 340 on the said Ordnance map sheets CLXXXV. 12 and 8 to the point of junction of that boundary with the eastern boundary of the enclosure numbered 341 on the last-mentioned sheets thence along the last-mentioned boundary to the north-easternmost corner of the said enclosure numbered 341 thence along the eastern and north-eastern boundary of the enclosure numbered 223 on the said Ordnance map sheet CLXXXV. 8 to the south-eastern corner of the enclosure numbered 216 on the last-mentioned sheet thence along the eastern northern and western boundaries of the last-mentioned enclosure to the north-western boundary of the enclosure numbered 349 on the said Ordnance map sheets CLXXXV. 8 and 12 thence in a north-westerly direction along the last-mentioned boundary to the southernmost corner of the enclosure numbered 210 on the said Ordnance map sheet CLXXXV. 8 thence along the eastern boundary of the last-mentioned enclosure and of the enclosures numbered 235 233 and 232 on the last-mentioned sheet to the south-western corner of the enclosure numbered 232a on the last-mentioned sheet thence in an easterly and north-easterly direction along the southern boundary of the last-mentioned enclosure and the south-eastern boundary of that enclosure and of the enclosure

A.D. 1928.

numbered 230 to the easternmost corner of the last-mentioned enclosure thence in a north-westerly direction along the north-eastern boundary of the said enclosure numbered 230 to the south-western corner of the enclosure numbered 252 on the last-mentioned sheet thence in a north-easterly direction along the south-eastern boundary of the last-mentioned enclosure and in a north-westerly direction along the north-eastern boundary of that enclosure and of the enclosure numbered 251 on the last-mentioned sheet to the northernmost corner of the last-mentioned enclosure thence in a north-easterly direction along the north-western boundaries of the enclosures numbered 274 and 273 on the last-mentioned sheet to the north-western corner of the last-mentioned enclosure thence in a north-easterly direction to the southern extremity of the weir of the Residium Lodge on Holden Beck thence in a northerly direction along the said weir to the northern extremity thereof thence in a north-westerly direction to the south-western corner of the enclosure numbered 285 on the last-mentioned sheet thence in a northerly direction along the western boundary of the last-mentioned enclosure to the southern boundary of the enclosure numbered 315 on the last-mentioned sheet thence in a north-westerly direction along the last-mentioned boundary to the westernmost corner of the said enclosure numbered 315 thence in a north-easterly direction along the north-western boundary of that enclosure to the south-western corner of the enclosure numbered 334 on the Ordnance map sheets CLXXXV. 8 and 4 thence in a northerly direction along the western boundary of the last-mentioned enclosure to the north-western corner thereof thence in a north-easterly direction along the north-western boundary of the last-mentioned enclosure and of the enclosure numbered 364 on the said sheets CLXXXV. 8 and 4 and the north-western boundary of the enclosure numbered 397 on the last-mentioned sheets to the easternmost corner of the enclosure numbered 396 on the Ordnance map sheet CLXXXV. 4 thence in a north-westerly direction along the south-western boundary of the enclosure numbered 416 on the last-mentioned sheet to the point of commencement hereinbefore described of the said imaginary line.

In the township of Draughton in the rural district of Skipton—

(1) Lands bounded on the north-east by the Skipton to Ilkley Road on the west by an imaginary line drawn in a southerly direction for a distance of 2·3 chains or thereabouts from a point in the western side of that road 6 chains or thereabouts measured in a south-easterly direction from the northernmost corner of the enclosure numbered 252 on the Ordnance map sheet CLXVIII. 7 to the centre of the stream flowing through that enclosure and the enclosures numbered 217 and 249 on the

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A.D. 1928. said map and on the south-west by an imaginary line drawn in a south-easterly direction from the last-mentioned point to a point in the said western side of the said road 9·3 chains or thereabouts measured in a south-easterly direction from the said northernmost corner of the said enclosure numbered 252;

(2) Lands comprising the enclosure numbered 306 on the Ordnance map sheet CLXVIII. 8.

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